

PAYTO Technologies UG (i.G.)

Privacy Policy for End Users

PAYTO App – End Users – Version: March 2026

General Information

PAYTO Technologies UG (i.G.), [Address], [Commercial Register Number] (hereinafter “PAYTO”, “we” or “us”) is the controller responsible for the processing of your personal data as an end user of the PAYTO platform (app and website) within the meaning of the General Data Protection Regulation (GDPR).

This Privacy Policy informs you pursuant to Art. 13 GDPR about the data we collect, the purposes and legal bases of processing, the recipients of data, retention periods and your rights as a data subject.

Data protection contact: datenschutz@payto.de

1. Controller

PAYTO Technologies UG (i.G.)

[Street and House Number]

[Postcode] Aichtal, Baden-Württemberg, Germany

Email: datenschutz@payto.de

Managing Director: [Name]

2. Categories of Data Collected and Purposes of Processing

2.1 Registration and User Account

When you create a user account, we process the following data:

- Email address (for account creation and communication)
- Username / display name
- Password (stored in encrypted form)
- Date of birth (for age verification pursuant to Art. 8 GDPR)
- Date and time of registration

Legal basis: Art. 6(1)(b) GDPR (performance of contract).

2.2 Location Data (GPS / Geofencing)

For the core function of the PAYTO platform – the automatic recognition of merchants near you – we process your location:

- GPS coordinates and location data (when location permission is enabled)
- Geofencing data to automatically display nearby merchants and offers

Location data is only collected if you have granted the corresponding permission in the app settings. You may revoke this permission at any time in your device settings.

Legal basis: Art. 6(1)(a) GDPR (consent). If consent is withdrawn, location-based features may be limited.

2.3 Usage Behaviour and App Interactions

To improve the platform and user experience, we process:

- Merchant profiles and categories accessed
- Offers clicked and redirects followed
- QR code scans (timestamp, merchant assignment)
- Search terms entered within the app
- Device type, operating system and app version
- IP address (anonymised after connection is established)

Legal basis: Art. 6(1)(f) GDPR (legitimate interest in improving and securely operating the platform).

2.4 Loyalty Programmes and QR Codes

Where you use loyalty programmes or QR codes via PAYTO, we process:

- Stored loyalty cards and customer card data (if entered by you)
- QR code scan events and redemption history

Legal basis: Art. 6(1)(b) GDPR (performance of contract to provide the feature).

2.5 Communication and Support

When you contact our support team, we process name, email address, content of your query, and timestamps. Legal basis: Art. 6(1)(f) GDPR (legitimate interest in handling support requests) or Art. 6(1)(b) GDPR for contract-related queries.

2.6 Push Notifications

If you have enabled push notifications, we may send you alerts about nearby offers, relevant merchants and platform updates. Legal basis: Art. 6(1)(a) GDPR (consent). Consent may be withdrawn at any time in the app or device settings.

3. Cookies and Similar Technologies

3.1 Technically Necessary Technologies

These are strictly required for the operation of the platform and do not require consent:

- Session cookies and authentication tokens (for login)
- Preference storage (language, device settings)

Legal basis: § 25(2) TDDDG, Art. 6(1)(f) GDPR.

3.2 Analytics and Statistics (opt-in)

Only with your consent do we use analytics tools to measure app usage (e.g. anonymised usage statistics). You grant consent via the consent banner displayed when the app is first launched. You may withdraw consent at any time in the app settings under “Privacy”.

Legal basis: Art. 6(1)(a) GDPR, § 25(1) TDDDG.

4. Disclosure of Data to Third Parties

4.1 Processors

We engage carefully selected service providers who process data on our behalf (Art. 28 GDPR), in particular:

- Cloud infrastructure and hosting providers (servers within the EU/EEA)
- Email delivery services (for transactional emails and notifications)
- Analytics service providers (only with consent, anonymised data)

All processors are contractually obliged to process data solely in accordance with our instructions and in compliance with the GDPR.

4.2 Merchants

PAYTO does not transmit personal user data to merchants. When you are redirected from PAYTO to a merchant and make a purchase, the merchant's own privacy policy applies.

4.3 Legal Obligations

We are entitled to disclose data to authorities or courts where legally required (Art. 6(1)(c) GDPR).

4.4 Third-Country Transfers

Where we engage service providers outside the European Economic Area (EEA), we ensure an adequate level of data protection through appropriate safeguards (e.g. EU Standard Contractual Clauses pursuant to Art. 46 GDPR).

5. Retention Periods

- Account data: until account deletion + 30-day grace period for accidental deletions
- Location data: real-time processing only; no permanent storage of movement profiles
- Usage log data: 90 days (anonymised after 30 days)
- Support communications: 2 years after closure of the matter
- Statutory retention obligations (e.g. tax records): 10 years pursuant to § 147 AO

6. Special Categories of Personal Data

PAYTO does not generally process special categories of personal data within the meaning of Art. 9 GDPR (such as health data, political opinions or religious beliefs). Should this change, you will be separately informed and explicit consent will be obtained.

7. Minors

Our platform is not specifically directed at children under 16 years of age. We do not knowingly collect data from persons under 16 without parental consent. Parents or guardians who discover that their child has created an account without the required consent may request deletion of the data at datenschutz@payto.de.

Pursuant to Art. 8 GDPR in conjunction with § 7 TDDDG, the age of consent for digital services in Germany is 16 years. For users between 16 and 18 years of age, no additional parental consent is required for use of the platform.

8. Your Rights as a Data Subject

Right of access (Art. 15 GDPR)

You may request information about the personal data we hold about you at any time.

Right to rectification (Art. 16 GDPR)

You may request the correction of inaccurate data or the completion of incomplete data.

Right to erasure (Art. 17 GDPR)

You may request the deletion of your personal data, provided no statutory retention obligations apply. You may delete your account at any time via the app settings.

Right to restriction of processing (Art. 18 GDPR)

Under certain conditions, you may request the restriction of processing of your data.

Right to data portability (Art. 20 GDPR)

You may request that we transmit the data you have provided to us in a structured, commonly used and machine-readable format.

Right to object (Art. 21 GDPR)

You may object at any time to the processing of your data on the basis of Art. 6(1)(f) GDPR (legitimate interest), with effect for the future.

Right to withdraw consent (Art. 7(3) GDPR)

Consents (e.g. for location access, push notifications, analytics cookies) may be withdrawn at any time without affecting the lawfulness of processing carried out prior to withdrawal.

To exercise your rights, contact: datenschutz@payto.de

9. Right to Lodge a Complaint

You have the right to lodge a complaint with the competent data protection supervisory authority. The supervisory authority for PAYTO Technologies UG (i.G.) is:

Der Landesbeauftragte für den Datenschutz und die Informationsfreiheit Baden-Württemberg (LfDI)

Königstraße 10a, 70173 Stuttgart, Germany

poststelle@lfdi.bwl.de | www.baden-wuerttemberg.datenschutz.de

10. Data Security

We implement technical and organisational security measures to protect your data against loss, destruction, unauthorised access and manipulation. These include in particular encryption of data transmission (TLS/HTTPS), encryption of stored password hashes and access restrictions on our systems.

In the event of a data breach, we will notify the competent supervisory authority pursuant to Art. 33 GDPR and affected users pursuant to Art. 34 GDPR where required.

11. Amendments to this Privacy Policy

We reserve the right to update this Privacy Policy where legal requirements change or we introduce new processing activities. The current version is always available in the app and on our website. We will inform you of material changes by email or in-app notification. Version: March 2025.